

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

FATIMA PATRICIA HERNANDEZ,

Petitioner

VS.

JAIME ENRIQUE VASQUEZ,

Respondent

) Case Number: FMS-24-387520

) Hearing Date: August 4, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF CHILD CUSTODY, VISITATION
(PARENTING TIME)

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Fatima Hernandez (Mother) and Respondent Jaime Vasquez (Father). They share two minor children: Gabriel Vasquez (DOB: 12/08/15) and Valentina Vasquez (DOB: 07/27/17).
- 2) On May 26, 2026, Mother filed a request for emergency child custody and visitation orders. Mother alleges Father got into bed with the children, while drunk, and masturbated; she does not believe the children are safe in Father's care. Mother requests sole legal and sole physical custody and no visitation to Father. The Court granted Mother's ex parte request, pending hearing, and set the matter for Readiness hearing on June 15, 2026.
- 3) On June 3, 2026, Father filed a Responsive Declaration wherein he requests sole legal and sole physical custody, supervised visitation for Mother, and a psychological evaluation for Mother.

1 Father alleges Mother is making false allegations against Father to take the children to El
2 Salvador.

3 4) On June 15, 2026, Readiness hearing was conducted, and the Court referred the parties to Family
4 Court Services (FCS) Mediation on July 21, 2026 and set the matter for return hearing on August
5 4, 2026.

6 5) On April 27, 2026, Father filed a Supplemental Declaration, which has been read and considered
7 by the Court.

8 6) On May 5, 2026, the matter was heard on the Court's Readiness calendar. The Court referred the
9 parties to FCS Mediation to occur on June 1, 2026 and set a return hearing for June 18, 2026.

10 7) On June 1, 2026, Mother filed a Responsive Declaration, which has been read and considered by
11 the Court.

12 **B. Findings and Order**

13 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
14 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
15 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
16 child(ren) is the United States.

17 2) **The parties are ordered to appear.**
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